

Santos-Rivera v. Garland - Certified Agency Order

Certified Agency Order in Santos-Rivera v. Garland. Procedural posture: Petitioner seeks review of a Board of Immigration Appeals decision dismissing asylum and withholding claims and affirming denial of Convention Against Torture protection.

Record material: The Board adopted the immigration judge's nexus analysis and added a brief alternative finding. Issue: CAT acquiescence and country conditions. Standard of review: substantial evidence with de novo legal framing. Record excerpt: Immigration judge credibility finding. The immigration judge found Santos-Rivera credible but concluded the threats reflected generalized criminal extortion. Nature of suit: Agency Review - Immigration. Lower tribunal: Board of Immigration Appeals.